

CONSENT MANAGEMENT POLICY

No. BAL/MIS/24-25/079; Date. 31-Jan-2025

This document governs consent management of customers (data subjects) at BAL.

Bajaj Auto Limited, hereinafter referred to as “We” or “Us” or “Organization” or “BAL”, has created this policy to demonstrate its commitment to maintain privacy of its customers/data subjects by safeguarding their personal data.

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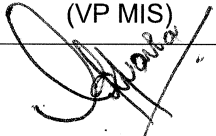
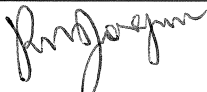
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1. Objective

The objective of this policy is to set forth the requirements for BAL for obtaining consent by issuing notice in line with the requirements of applicable data privacy/protection regulations.

2. Overview

This policy emphasizes on process for obtaining, managing, and documenting consent before collecting, processing, or storing personal data. The policy also includes processes for tracking consent history, enabling easy withdrawal, and ensuring transparency about data processing purposes.

Please note that for the purpose of this policy, the use of “data” and “information” shall be considered synonymous and has been used interchangeably. For the purpose of this policy, the term personal data refers to customer personal data.

3. Scope

This policy applies to all activities, processes, systems, and personnel involved in the processing of customer personal data related to connected electric vehicles to ensure compliance with applicable data privacy/protection regulations in all personal data processing activities across Bangladesh, Brazil, Colombia, Greece, Indonesia, Kenya, Mexico, Nepal, Philippines, Portugal, Saudi Arabia, Spain, Sri Lanka, Thailand, Turkey, UAE.

Please refer Appendix B for country specific regulation. The appendix covers the consent requirement for the countries listed above.

This appendix needs to be monitored frequently (at least every six months) and any changes to the respective country specific privacy related regulation in regards with consent management should be incorporated.

4. Policy

Process to obtain, record, maintain and withdraw consent:

a. Obtaining Consent

To obtain consent, BAL shall ensure that a Data Subject is provided with privacy notice which includes details on how BAL collects, uses, retains, and discloses their personal data along with purpose of collection of personal data and data subject’s rights and the means for them to control or withdraw their consent to the processing activities performed by BAL.

Conditions for obtaining consent:

- Clear and informed consent: The Company ensures that consent is obtained through clear, easy-to-understand language.

- Granularity of Consent: Consent will be requested for each specific purpose for which data is collected
- Method of obtaining consent: Consent will be obtained through opt-in mechanisms, such as checkboxes or explicit statements on web forms, mobile apps, or paper forms. All consent requests will be unambiguous and will not be bound by default consent (e.g., pre-ticked boxes) for any processing.
- Verification of Consent: BAL will ensure that the consent mechanism used (e.g., an email verification or SMS code) is suitable.

b. Valid Consent

The consent obtained shall be deemed valid only if it is:

- **Freely given**- The element free implies real choice and control for the person. If a Data Subject has no real choice, feels compelled to consent or will endure negative consequences if they do not consent, then the consent will not be valid.
- **Informed**- Informed implies that the Data Subject should be aware of the identity of the BAL, the purposes of the processing for which the personal data is intended, and their rights, nature and categories of personal data collected, etc.
- **Specific**- This implies that the scope of the consent with respect to the purpose of the processing of personal data is specific and not ambiguous.
- **Clear**- This implies whether the consent is indicated through an affirmative action, which is meaningful in each context.
- **Time-bound** - Consent shall be valid for a specified period which shall be communicated to the Data Subject.
- **Capable of being withdrawn**- As per the data subject access request procedure, the consent shall be capable of being withdrawn as and when required as per the Data Subject's request (refer **Data subjects rights request procedure** document for more details (policy no. BAL/MIS/24-25/ 075)).

c. Recording Consent

- The organization is under obligation to record the consent of the data subject before the initiation of any processing activity. BAL shall maintain a record of the consent provided by the data subject to be compliant with the applicable data privacy/protection regulations.
- Business units/departments obtaining consent from the data subject on behalf of the BAL in digital format or physically that is digitized subsequently, shall maintain records of the following:
 - The name of the Data Subject
 - A copy of the accurately dated consent request provided to the data subject at the time of obtaining consent.

d. Managing Consent

- BAL shall provide the data subject with the option to give, manage, review, or withdraw their consent either directly or through any equivalent entity as outlined in the country regulation for respective country.
- BAL shall validate the consent provided by the data subject during the initiation of the processing activity. The data subject shall have the option to provide consent to BAL to continue the personal data processing activity or withdraw consent.
- The response from the data subject shall be stored securely in a database.
- In case of any change in the business process or change in the nature of the processing of personal data, BAL shall periodically review the validity of the data subject's consent and if necessary, the consent shall be taken again from the data subject to maintain the validity of the consent. In cases where there is a change in consent, the consent shall be updated.

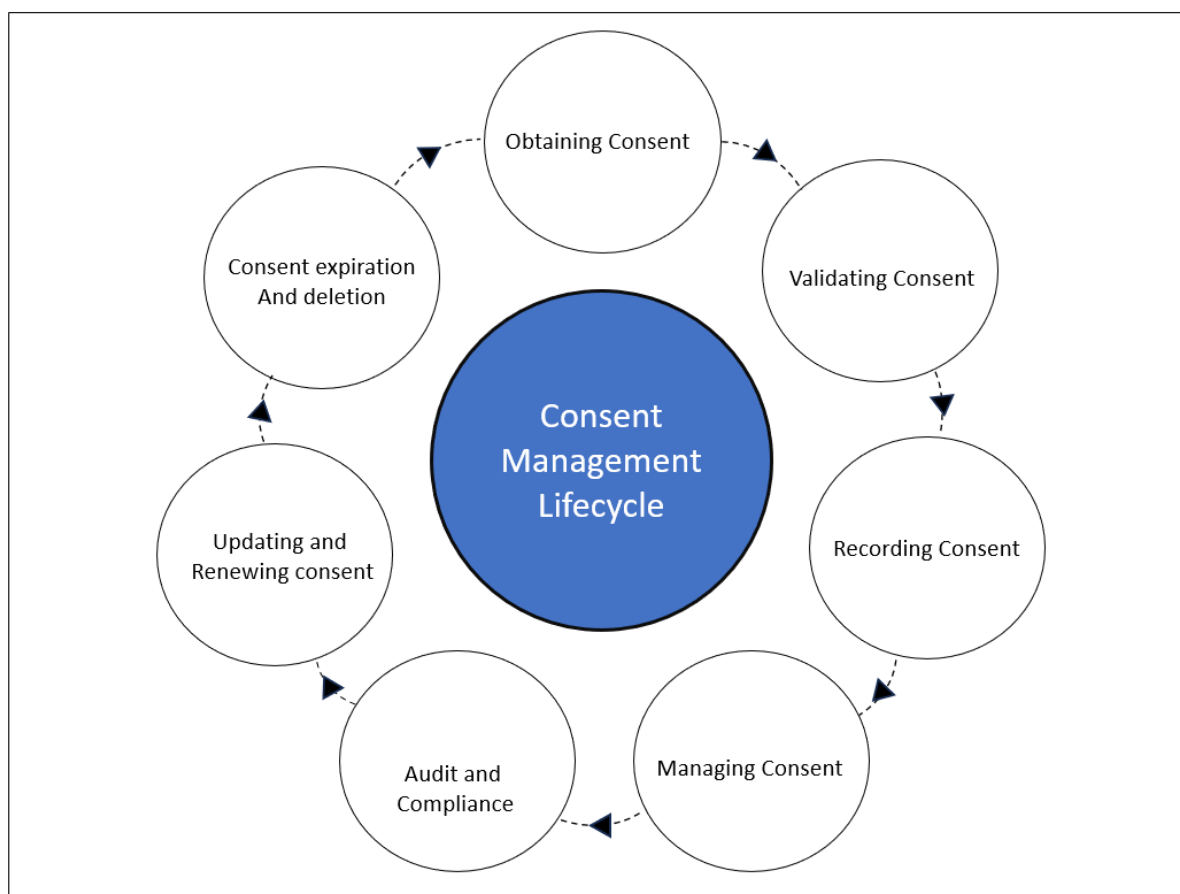
e. Withdrawing Consent

- BAL shall provide the data subject either directly or through an equivalent entity as outlined in the country regulation for respective geography with the option to withdraw his or her consent at any time during the processing activity by writing to the DPO or any equivalent entity as outlined in the country regulation for respective geography.
- The withdrawal of consent by the data subject shall not affect the processing carried out by the BAL before such withdrawal. BAL shall have to stop any processing of personal data that was based on the Data Subject's consent (that has been withdrawn) unless the personal data is to be processed for any other legal requirements.
- All consent withdrawal requests will be forwarded to the BAL's Data Protection officer and team for further action. (refer data **subject rights request procedure** for more details (policy no. BAL/MIS/24-25/ 075)).

f. Maintenance of Audit Trail

BAL shall maintain records / evidence related to providing privacy notice to the data subject before the collection of personal data, records of consent obtained from the Data Subject, request to the withdrawal of consent, and erasure of personal data if any to demonstrate the compliance with the consent management provisions of the relevant privacy regulations.

g. Consent management lifecycle



5. Legal Basis for Processing personal data

BAL shall ensure that it identifies and documents the legal basis for processing personal data in line with the provisions of relevant data privacy regulations. An organization may process the personal data of a data subject only by following the provisions of applicable data privacy/protection regulations, for a lawful purpose for which the data subject has given consent under the provisions of such privacy regulations.

- **Consent:** Where you have given us explicit consent, for example, for marketing communications or cookies. For example: A customer agrees to receive email updates, offers, or data analytics based on their driving habits or charging preferences.
- **Legal Obligation:** To comply with legal obligations, including safety, warranty, and regulatory requirements. For example: The company must collect and store vehicle registration details or emissions-related data to comply with government regulations.
- **Legitimate Interests:** To pursue our legitimate interests, such as improving our system, enhancing customer experience, and marketing, provided that these interests do not override data subject's rights and freedoms. For example: using data to improve the

- company's EV services (e.g., analyzing charging patterns for optimizing charging stations or fleet management)
- **Vital Interest:** Processing is necessary to protect the vital interests of the data subject or intended to cover only interests that are essential for someone's life (such as life-or-death situations).

6. Processing of personal data of children or person with disability

Where applicable/required, BAL shall process the personal data of a child below the legal age (as defined by applicable jurisdiction) in a manner that safeguards the child's privacy rights and prioritizes their best interests. Prior to processing any personal data of a child, BAL will verify the child's age using authentic documentation or proof, such as government-issued identifiers, education records, or health certificates, and obtain consent from the child's parent or legal guardian.

BAL shall obtain verifiable consent from lawful guardian before processing of any personal data of a disabled person. The identity of such as a guardian shall be verified through authentic and verifiable sources such as government identifiers, documentation establishing relationship with person with disability and directions of judicial proceedings.

7. Review Frequency

This document is subject to annual review or earlier if there are changes in the business environment or applicable data privacy/protection regulations. Any updates to this document will be recorded at the beginning of the document.

8. Appendix

a. Definitions

- **Data Subject:** A data subject is a natural person whose personal data is collected, stored, or processed.
- **Personal data:** Any information relating to an identified or identifiable natural person. An identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors.
- **Processing:** Processing means any operation or set of operations which is performed on Personal data or on sets of Personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, erasure, or destruction.
- **Customer:** A customer is a person who buys goods or services from another business
- **Consent:** Consent of the data subject means any freely given, specific, informed and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her.

****NOTE:** The definitions listed above may vary as per the scope of the document. Please refer the Country specific requirement sheet: Definitions for specific country.

b. Applicable Regional specific laws

Below is a list of the countries within scope and their corresponding data protection regulations. Please refer the detailed requirements for consent requirements in each country in country law comparison excel sheet.

S. No.	Country	Regulation
1	Thailand	PERSONAL DATA Protection Act 2019 ('PDPA')
2	Sri Lanka	PERSONAL DATA Protection Act
3	Nepal	Privacy Act 2075 (2018);
4	Bangladesh	The Data Protection Bill, 2023 (Draft)
5	Indonesia	The PERSONAL DATA Protection Law, 2022 (PDPL)
6	Saudi Arabia	1. PERSONAL DATA Protection Law (PDPL) 2021 2. PERSONAL DATA Protection Interim Regulations (PDPIR)
7	UAE	UAE Federal Decree-Law No. 45 of 2021 on the Protection of PERSONAL DATA
8	Mexico	The Federal Law on the Protection of PERSONAL DATA held by Private Parties - 2010
9	Turkey	Law on the Protection of PERSONAL DATA No. 6698 dated April 7, 2016 (LPPD).
10	Kenya	Data Protection Act (DPA), 2019
11	Colombia	Law 1581 of 2012 (General PERSONAL DATA Protection Law)
12	Philippines	The Data Privacy Act of 2012(DPA)
13	Brazil	Law No. 13.709 of 14 August 2018, General PERSONAL DATA Protection Law ('LGPD')
14	Greece	The General Data Protection Regulation (GDPR) 2018
15	Portugal	
16	Spain	